DOCUMENT 4 — PLAIN-ENGLISH SUMMARY (REVISION 5)

This describes a proposed bill. It is not law.

The bill in four sentences

1. **Two fit parents should start equal.**
2. **Money designated for a child should benefit the child.**
3. **A court order stays the order until the parents agree otherwise or a court changes it.**
4. **A court order must have a practical way to enforce it.**

1. Every legal parent is an equal parent.

Once paternity is legally established, **both parents are equal legal custodians**, married or not. You don't have to sue. Equal status isn't a schedule: either parent can ask a court for one, and you can get a hearing within 28 days on a temporary order.

2. The starting point is 50/50.

At the first custody decision, the court starts from **shared parenting and substantially equal time** (at least 45 percent each). If you agree on a plan, the judge approves it unless it's bad for your child.

The 50/50 start can be overcome only if: 1. it would endanger the child; 2. a parent can't or won't take equal time; 3. distance or school makes it impractical; 4. a parent has repeatedly denied the other's court-ordered time; or 5. a child 12 or older has a reasoned preference for something different (see below).

Conflict between the parents, one parent's objection, or an unproven accusation isn't enough.

If 50/50 is overcome, the judge explains why in writing, gives each parent as much time as possible, and gives **no parent fewer than 90 nights a year** except in narrow cases. Ninety nights is a floor, never a goal.

Children 12 and older. A child 12 or older can tell the judge, privately, what they want. The judge follows a reasoned preference unless it would endanger the child, isn't practical, or isn't really the child's own view, and must explain in writing. No child has to choose, and the judge, not the child, makes the decision.

Protection orders. An order issued *after a full hearing* takes the 50/50 start away from the person it's against while it lasts. A short-term emergency order controls while it's in effect but doesn't decide custody on its own.

3. Old custody order? You can be an equal parent again.

File a motion. You don't have to prove that circumstances changed. It's granted unless you have a proven history of violence or abuse, or you're an immediate threat. **Your schedule, support, and the child's school stay the same** until a judge changes them. Your first request for more time starts from 50/50.

4. Only a judge changes a court order.

Your order stays your order until a judge changes it, though you and the other parent can agree to swap a particular day. A GAL, parenting coordinator, counselor, caseworker, or police officer can investigate, recommend, or help, but **cannot cut, suspend, supervise, or put conditions on your time.** A GAL's recommendation is only evidence, and you can question the GAL in court.

5. You can't be made to pay to parent.

You and the other parent can agree to use and split the cost of a GAL, parenting coordinator, evaluator, classes, counseling, or supervised visits. If you ask for one, you can be asked to pay for it. But if the court requires one and you didn't agree to pay, **it must be free to you.** Not being able to pay can never delay your hearing or limit your time with your child.

6. Accusations must be decided.

An accusation alone changes nothing. You can demand a hearing within 90 days. A restriction based on an undecided accusation ends after **36 months, with one possible 45-day extension**, and the judge must schedule a hearing at 30 months.

Honest reports are protected: "unsubstantiated," "dismissed," or "acquitted" doesn't mean "false." A **knowingly false** accusation, proven by clear and convincing evidence, brings make-up time, legal fees, and grounds to change custody.

7. Getting help when your time is denied.

Your county child support agency also becomes the **Family Support Enforcement Agency (FSEA)**. You can ask it for help, the same way you can ask for help collecting support. Or you can go straight to court.

1. File a free complaint within 60 days of missed time.
2. The FSEA gets the order, asks the other parent to respond, and decides within 45 days.
3. If time was wrongly denied, you get **make-up time of the same kind and length**, and the denial goes on the record.
4. Either parent can object to a judge within 14 days. If nobody objects, the judge signs it.

Real emergencies, illness, weather, agreed changes, protection orders, and good-faith safety steps that are promptly reported are valid excuses. Safety claims and unclear orders go straight to a judge.

Repeated or serious denials (three in a year, 14 days or more, or hiding or taking the child out of state) are sent to the prosecutor, and the FSEA can file contempt for you. Three denials in two years are grounds to change custody. The bill creates **no fines**; the remedy is your time back.

If your child refuses to go, the other parent must make reasonable efforts, but no one has to use force.

Support and parenting time stay separate. You can't stop paying support because time was denied, and you can't deny time because support wasn't paid.

8. Child support has two labeled parts.

The total is calculated exactly as it is today. The order labels it: - **Parental support** supports the child through the household: rent, utilities, food, transportation. No records are needed. - **Accountable child support** is for the child directly: child care, clothing, school, activities, camps, equipment, or savings for the child. It always includes child care costs in the order, plus anything the parents agree to or the judge designates.

Once a year, the paying parent can ask, through the FSEA, **where** the accountable support went. The other parent has 60 days to show the place, date, and amount of each payment. A bank or credit card statement is enough, and cash can be listed and signed. **No receipts and no lists of what was bought.** Any amount not accounted for is **credited against future** accountable support.

You may never stop or reduce payments yourself. Nothing changes support already owed.

9. Serious withholding is a crime, not "just civil."

Keeping a child during the other parent's court-ordered time, without a valid excuse, is interference with custody under existing Ohio law. An honest reading of an unclear order isn't a crime. After a referral, the prosecutor has 60 days (90 with one extension) to charge or send a written notice of declining. No reasons are required, and a referral is not proof of guilt.